Module 5 Study Guide: A New Nation

Completed answer sheet. Read the bold question aloud, then check the answer against the bullets.

Study Guide Questions

1. What was the Judiciary Act of 1789? What did it do?

- A law passed by the first Congress (1789) that **set up the federal (national) court system**, which the Constitution had left mostly to Congress.
- Set the **Supreme Court at six justices** (one Chief Justice + five associate justices).
- Created lower federal courts: 13 **district courts** and 3 **circuit courts**.
- Created the office of **Attorney General** (the government's chief lawyer). Let the Supreme Court review state court decisions involving federal law.

2. Differences between Thomas Jefferson and Alexander Hamilton? What type of government did they want? What roles did they play in Washington's presidency?

- **Hamilton:** wanted a **strong central (federal) government**; "loose" reading of the Constitution; national bank, federal government paying off state debts, tariffs; economy based on trade, manufacturing, and cities; leaned toward **Britain**; trusted educated, wealthy leaders.
- **Jefferson:** wanted a **limited national government** with more power for the **states**; "strict" reading of the Constitution (opposed the national bank as unconstitutional); economy of **small farmers**; leaned toward **France**; trusted ordinary citizens.
- **Roles:** Both were in Washington's **cabinet**. Hamilton was **Secretary of the Treasury**; Jefferson was **Secretary of State**. Their arguments helped split the country into parties.

3. What were the first political parties? What caused them to form?

- **Federalists** (led by Hamilton, also John Adams) vs. **Democratic-Republicans** (led by Jefferson and James Madison).
- Formed in the 1790s over disagreements about **Hamilton's financial plan** and the **national bank**, how much power the federal government should have, and **foreign policy** (Federalists favored Britain; Democratic-Republicans favored France), including the fight over Jay's Treaty.
- This created America's first **two-party system**, even though Washington warned against parties.

4. What's the Twelfth Amendment? Why do we have it?

- Ratified in **1804**. Electors now cast **separate ballots for president and vice president**.
- Before, each elector cast two votes, with no way to say which was for president. The top vote-getter became president and the runner-up became VP.
- Why: in the **election of 1800**, Jefferson and his running mate **Aaron Burr tied** (73 electoral votes each), and the House of Representatives needed 36 ballots to pick Jefferson. The amendment keeps that from happening again.

5. What's the case *Marbury v. Madison* about? What did the decision do to the Supreme Court?

- (1803) Just before leaving office, President John Adams appointed "midnight judges." William **Marbury**'s commission (appointment paper) was never delivered, and the new Secretary of State, James **Madison**, refused to deliver it. Marbury sued and asked the Supreme Court to order delivery.
- Chief Justice **John Marshall** ruled that Marbury deserved his commission, but the part of the **Judiciary Act of 1789** that let him bring the case straight to the Supreme Court was **unconstitutional**, so the Court could not help him.
- Result: established **judicial review**. The Court gained the power to strike down laws, which made it a **co-equal branch** with Congress and the president.

Note: the study guide prints this case as "Madison v. Marbury." The correct name is Marbury v. Madison (Marbury sued Madison).

6. Why did Jefferson want to buy Florida and New Orleans?

- Western farmers shipped crops down the **Mississippi River** to the port of **New Orleans**. Whoever controlled New Orleans controlled their trade.
- Spain had secretly given Louisiana back to **France** (Napoleon), and in 1802 the right to store goods at New Orleans was taken away. Jefferson feared a powerful France next door.
- He sent James Monroe to join Robert Livingston in buying New Orleans and West Florida to **guarantee U.S. shipping and access to the Gulf of Mexico**.
- Instead, Napoleon offered all of Louisiana. This became the **Louisiana Purchase (1803), about $15 million**, which doubled the size of the U.S. (Florida stayed Spanish until 1819.)

7. What are the War Hawks?

- Young members of Congress, mostly from the **South and West**, elected around 1810 who **pushed for war with Great Britain**.
- Leaders: **Henry Clay** (Kentucky, Speaker of the House) and **John C. Calhoun** (South Carolina).

8. Why did they want war with Great Britain?

- **Impressment:** the British navy kidnapped American sailors and forced them to serve on British ships.
- Britain **interfered with American trade** and seized U.S. ships trading with France.
- Britain was **arming Native Americans** (such as Tecumseh's confederacy) who fought American settlers on the frontier.
- Desire to **expand**, possibly taking Canada, and to defend national honor. Congress declared war in June 1812 under President Madison.

9. What was the Treaty of Ghent?

- The peace treaty that **ended the War of 1812**, signed on **December 24, 1814** in Ghent (in modern Belgium).
- Put things back the way they were before the war: **no land changed hands**. It did not settle impressment or trade rights.
- News traveled slowly, so the **Battle of New Orleans** (January 1815) was fought **after** the treaty was signed.

10. Who is Thomas Pinckney?

- A diplomat from South Carolina who negotiated **Pinckney's Treaty (1795) with Spain**, also called the Treaty of San Lorenzo, during Washington's presidency.
- Gave Americans the right to **navigate the Mississippi River** and the **right of deposit** (to store and ship goods) at **New Orleans**. It also set the border with Spanish Florida.
- Was later the Federalist vice-presidential candidate in 1796. (Don't confuse him with his brother **Charles C. Pinckney**, who was one of the diplomats in the XYZ Affair.)

11. What was the XYZ Affair?

- (1797–1798, under President **John Adams**) Adams sent three diplomats to France to stop French attacks on American ships.
- Three French agents, later called "X, Y, and Z," **demanded a bribe** (about $250,000) and a loan before they would even talk.
- Americans were outraged ("Millions for defense, but not one cent for tribute!"). It led to an undeclared naval war with France, the **Quasi-War**, and made the Federalists more popular for a time.

12. What were some challenges of Washington's presidency?

- Setting up a brand-new government with **no examples to follow**, and paying off large **Revolutionary War debts**.
- **Whiskey Rebellion (1794):** farmers rebelled against a federal tax on whiskey. Washington sent about 13,000 militia, showing the federal government could enforce its laws.
- **Foreign affairs:** war between Britain and France led to the **Proclamation of Neutrality (1793)** and trouble with French diplomat **Citizen Genêt**. The British seized ships and kept forts on U.S. land (Jay's Treaty, 1794), and Spain controlled the Mississippi (Pinckney's Treaty, 1795).
- **Conflict with Native Americans** in the Northwest Territory (Little Turtle; Battle of Fallen Timbers, 1794). **Rise of political parties** inside his own cabinet.

13. What were some of the precedents of the Washington presidency?

- A **precedent** is an action that sets an example for those who come later.
- Created the **cabinet** of advisers. Chose the simple title **"Mr. President."**
- Served only **two terms**, a tradition that lasted until FDR and later became law in the 22nd Amendment (1951).
- **Neutrality** in foreign wars. His **Farewell Address** warned against **political parties**, sectionalism, and **permanent alliances** with foreign countries.

14. What were some of the results of the War of 1812?

- **No territory changed hands** (Treaty of Ghent). It is often called a draw.
- A big boost in **nationalism** and pride. It was called the "second war of independence," and it gave us "The Star-Spangled Banner" (from the defense of Fort McHenry, 1814). It led into the **Era of Good Feelings**.
- The **Federalist Party collapsed** after opposing the war (Hartford Convention).
- **Native American resistance** in the Northwest was broken after Tecumseh died (1813). American **manufacturing grew**, and **Andrew Jackson** became a national hero.

15. What is judicial review?

- The power of the courts, especially the **Supreme Court**, to decide whether a law or government action is **constitutional**, and to strike it down if it is not.
- It is not written in the Constitution. It was established by *Marbury v. Madison* (1803). It is a key part of **checks and balances**.

16. Who won the election of 1800? What changes were made after that election?

- **Thomas Jefferson** (Democratic-Republican) defeated President John Adams (Federalist). Because of the electoral tie with **Aaron Burr**, the **House of Representatives** decided it on the 36th ballot (Hamilton helped by backing Jefferson over Burr).
- Called the **"Revolution of 1800"**: the first **peaceful transfer of power between opposing parties**.
- Changes: the **12th Amendment** (1804). Jefferson also **shrank the federal government** (cut the army, navy, and national debt), **ended the whiskey tax**, and let the **Alien and Sedition Acts** expire.

Essay Talking Points

Washington's presidency

- **Challenges:** a new government, war debt, the Whiskey Rebellion, the Britain–France war and Genêt, British and Spanish problems, and Native American conflicts.
- **Precedents:** the cabinet, "Mr. President," two terms, neutrality, and the Farewell Address.
- **Party opinions:** Federalists (Hamilton) supported the bank, strong government, and Britain. Democratic-Republicans (Jefferson) supported states' rights, farmers, and France. Washington stayed above parties and warned against them.
- **Major events:** the Judiciary Act and Bank of the U.S. (1789/1791), the Neutrality Proclamation (1793), the Whiskey Rebellion and Fallen Timbers (1794), Jay's and Pinckney's Treaties (1794–95), and the Farewell Address (1796).

Hamilton vs. Jefferson

- Strong vs. limited national government; loose vs. strict reading of the Constitution; national bank (for vs. against).
- Manufacturing and cities vs. small farmers; pro-Britain vs. pro-France; Treasury vs. State Department.
- Their rivalry created the first two parties, the Federalists and the Democratic-Republicans. *Thesis idea:* their debate still shapes arguments today about how powerful the federal government should be.

Importance of *Marbury v. Madison*

- **What happened:** Adams's midnight appointment, Madison withholding the commission, and Marshall's 1803 ruling striking down part of the Judiciary Act of 1789.
- **What it changed:** it created judicial review and made the Supreme Court a co-equal branch able to check Congress and the president.
- **Today:** courts still use judicial review to decide whether laws are constitutional. It is a central part of checks and balances and the rule of law.

War of 1812

- **Causes:** impressment, British interference with trade, British support for Native Americans (Tecumseh), the War Hawks, and the desire for Canada and land.
- **Big battles:** the **Battle of New Orleans** (Jan. 1815). Andrew Jackson's forces crushed the British attack, but it came after the Treaty of Ghent had already been signed. Also the burning of Washington, D.C. and Fort McHenry (1814), Perry's victory on Lake Erie (1813), and the Battle of the Thames (1813).
- **Results:** no land changed (Treaty of Ghent), a surge of nationalism, the end of the Federalists, weakened Native American resistance, growth in U.S. manufacturing, and new heroes such as Jackson.